REQUEST FOR U NONIMMIGRANT STATUS CERTIFICATION

SUPPORTING LEGAL ANALYSIS AND EVIDENTIARY SUMMARY

Pursuant to Form I-918 Supplement B
8 U.S.C. § 1101(a)(15)(U); California Penal Code § 679.10
CHP File No. 390.18437.17620 | POST Case No. PUBLIC-26-000371

From: Brendan Ngehsi Newanforbi, Petitioner / Complainant
To: Sergeant Eric Dutra, Assigned Investigator, Dublin Area CHP
Date: April 9, 2026
Re: Evidentiary Basis for Certification of Form I-918 Supplement B

I. PURPOSE AND SCOPE

This memorandum provides a comprehensive evidentiary analysis in support of the enclosed Form I-918 Supplement B, U Nonimmigrant Status Certification. It is directed to Sergeant Eric Dutra in his capacity as the assigned investigator for CHP Citizen Complaint File No. 390.18437.17620 and as the designated certifying official on the enclosed Supplement B form.

The purpose of this memorandum is to demonstrate, through contemporaneous documentary evidence already in CHP's possession or attached hereto, that each statutory element for U visa certification is satisfied. This document is scoped exclusively to the evidentiary record and the applicable legal standards—it is not a legal brief or adversarial filing. It is a good-faith presentation of facts to assist the certifying official in making the certification determination required by law.

II. SUMMARY OF THE EVIDENTIARY RECORD

The following documentary evidence has been compiled and is referenced throughout this memorandum. Each exhibit is attached or is already within CHP's custody and control:

Exhibit A — CHP Dashcam Video Transcript. A verbatim, timestamped transcription of the audio and video recording captured by the CHP dashcam during the entire encounter on November 1, 2024, CHP Case No. RJ68845. This is the single most important piece of evidence in the record because it provides an objective, contemporaneous account of every statement made and every action taken by both officers and by the Petitioner.

Exhibit B — CHP Arrest-Investigation Report (CHP 202, Case No. RJ68845). The official five-page report prepared by Officer Meza-Gonzalez. This report contains the sworn statements that are directly contradicted by the dashcam recording, forming the evidentiary basis for the obstruction of justice and perjury elements of the qualifying criminal activity.

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Exhibit C — Detention Certificate (Dublin CHP-01991, dated November 5, 2024). The official certificate issued under Penal Code § 851.6, in which CHP itself retroactively reclassified the arrest as "a detention only, not an arrest" and certified "insufficient grounds for making a criminal complaint." This is CHP's own admission that the arrest lacked legal justification.

Exhibit D — Declaration of Brendan Ngehsi Newanforbi. A sworn declaration under penalty of perjury detailing the physical and mental harms suffered as a direct result of the qualifying criminal activity, including the loss of livelihood, emotional distress, and financial hardship.

Exhibits E and F — Pay Stubs and Wage Notice (Centerline Drivers, LLC). Twenty-six consecutive weekly pay stubs from Centerline Drivers, LLC, covering the pay periods from May 5, 2024 through January 3, 2025, documenting Petitioner's earnings as a commercial truck driver immediately before the incident. These records establish both the Petitioner's livelihood and the quantum of economic harm caused by the DMV suspension.

Exhibit G — DMV Temporary License and APS Hearing Notice. Documentation from the California Department of Motor Vehicles showing the administrative per se (APS) suspension proceedings and the restriction/disqualification of Petitioner's Class A commercial driving privileges—a direct consequence of the officers' fabricated report.

Exhibit H — CHP Complaint Assignment Letter (Captain G. Serrato, March 26, 2026). CHP's own letter confirming receipt of the citizen complaint, assignment of Sergeant Eric Dutra as the investigator, and CHP's acknowledgment that the matter is under active investigation.

III. ELEMENT ONE: PETITIONER IS A VICTIM OF QUALIFYING CRIMINAL ACTIVITY

The first element requires that the Petitioner is or was a victim of one or more qualifying criminal offenses enumerated in 8 U.S.C. § 1101(a)(15)(U)(iii). The evidence establishes victimization across four independently qualifying categories.

A. False Imprisonment / Unlawful Criminal Restraint (Cal. Penal Code § 236)

Penal Code § 236 defines false imprisonment as "the unlawful violation of the personal liberty of another." The evidence establishes each component:

The arrest lacked probable cause. The dashcam transcript (Exhibit A) reveals that the sole basis for the traffic stop was a welfare check on a lawfully parked vehicle. The only substance identified in the vehicle was urine in a cup. Officer Melano himself conclusively identified the liquid: "This is piss. It smells like piss." (Exhibit A, 00:58:59.) At that moment, the sole articulated basis for suspicion—that the cup contained alcohol—was definitively eliminated.

The Petitioner exhibited no objective signs of impairment. Throughout the encounter, the Petitioner correctly identified his location as Livermore (Exhibit A, 01:00:41); read

highway signs approximately 50 yards away (Exhibit A, 01:00:44); coherently explained his professional training as a commercial truck driver and his habit of pulling over when fatigued (Exhibit A, 01:01:21); and estimated 30 seconds at 43 seconds on the Modified Romberg Balance test—well within normal parameters (Exhibit A, 01:08:40–01:08:45). Critically, neither officer verbalized detecting any odor of alcohol from the Petitioner's person or breath at any point during the encounter, as confirmed by the complete dashcam audio.

The arrest was triggered solely by the PAS refusal. The dashcam recording captures the critical exchange: Officer Meza-Gonzalez explicitly advised the Petitioner, "You're not required to do this" (Exhibit A, 01:10:54), referring to the preliminary alcohol screening test. When the Petitioner exercised his lawful right to decline, Meza-Gonzalez immediately placed him under arrest. (Exhibit A, 01:11:15–01:11:33.) An arrest based solely on the exercise of a right the officer explicitly acknowledged was voluntary constitutes false imprisonment.

CHP itself admitted the arrest was unjustified. The Detention Certificate (Exhibit C) officially recharacterizes the incident as "a detention only, not an arrest" and certifies "insufficient grounds for making a criminal complaint." No criminal charges were ever filed. This is CHP's own contemporaneous determination that the Petitioner was restrained without lawful justification.

B. Felonious Assault / Battery (Cal. Penal Code § 242)

Battery under California law is any willful and unlawful use of force or violence upon the person of another. Cal. Penal Code § 242. The Petitioner was subjected to two distinct batteries:

Forcible handcuffing without probable cause. At 01:11:33, Officer Meza-Gonzalez placed handcuffs on the Petitioner and transported him to the CHP Dublin Area Office. (Exhibit A, 01:11:33; Exhibit B, p. 5.) Because the arrest itself was without probable cause —as CHP later conceded—the physical restraint constitutes an unlawful application of force.

Involuntary blood draw via misrepresented warrant. After the Petitioner exercised his right to refuse chemical testing, Officer Melano told him: "If you don't do it we're gonna get it anyways" (Exhibit A, 01:37:36). A warrant was obtained based on the fabricated CHP report, and at approximately 0238 hours, phlebotomist Aziza Ghaleb extracted two vials of blood from the Petitioner's right arm at the CHP Dublin Area Office. (Exhibit B, p. 5.) Because the warrant was procured through material misrepresentations in the sworn report —specifically, the fabricated "strong distinct odor of an alcoholic beverage" that the dashcam proves was never observed—the blood draw constitutes a forcible bodily intrusion based on fraudulent process.

C. Obstruction of Justice / Fabrication of Evidence

Obstruction of justice is an enumerated qualifying crime under 8 U.S.C. § 1101(a)(15)(U)(iii). The evidence of fabrication is extensive and directly provable through a comparison of the CHP report (Exhibit B) against the dashcam transcript (Exhibit A):

Fabrication #1: "Strong distinct odor of an alcoholic beverage." The CHP report states that Officer Meza-Gonzalez "could smell the distinct odor of an alcoholic beverage emitting from within the vehicle" and "from Newanforbi's breath and person." (Exhibit B, pp. 4–5.) The dashcam transcript contains no contemporaneous verbalization of any alcohol odor at any point. The only odor discussed by either officer during the encounter was the odor of urine from the cup. (Exhibit A, 00:58:51–00:59:04.) This is not a matter of interpretation—it is a direct, provable contradiction between a sworn written statement and the objective audio recording.

Fabrication #2: "Slurred" speech. The CHP report characterizes the Petitioner's speech as "Slurred." (Exhibit B, p. 2.) The dashcam audio recording captures the Petitioner speaking coherently and articulately throughout the encounter. He identifies his location, reads distant highway signs, explains his professional background, and engages in extended, fluent conversation with both officers. The audio flatly contradicts the "slurred" characterization.

Fabrication #3: The Petitioner "seemed very confused and disoriented." The CHP report describes the Petitioner as "very confused and disoriented." (Exhibit B, p. 4.) The dashcam shows the Petitioner correctly identifying his location as Livermore (Exhibit A, 01:00:41), accurately reading highway signs (Exhibit A, 01:00:44), explaining his origin (Oakland) and destination (Stockton), and providing a coherent account of his professional practices as a CDL holder. (Exhibit A, 01:01:21–01:01:56.)

Fabrication #4: "Beverage present: Yes." The CHP report checks "BEVERAGE PRESENT: YES" (Exhibit B, p. 2), directly implying an alcoholic beverage was found in the vehicle. In fact, the only liquid found was the cup of urine, which Officer Melano definitively identified as such on the dashcam. No alcoholic beverage container was found containing alcohol—the "Mike's Hard Lemonade" can referenced at 01:00:09 was described as empty, and the Petitioner denied consuming it.

These fabrications are not minor discrepancies—they are the material misrepresentations upon which the entire arrest, the warrant for the involuntary blood draw, the parole hold, the booking at Santa Rita Jail, and the DMV suspension were predicated. They were made under penalty of perjury in a sworn law enforcement report. The dashcam evidence in CHP's own custody proves they are false.

D. Perjury (Cal. Penal Code § 118)

The sworn statements in the CHP 202 report (Exhibit B) that are contradicted by the dashcam recording (Exhibit A) independently constitute perjury under California Penal Code § 118. Officer Meza-Gonzalez's report was prepared under penalty of perjury and submitted to secure a search warrant from a magistrate. The false statements regarding the odor of alcohol, the Petitioner's speech, and his demeanor were material—they formed the factual predicate for the warrant, the arrest, and all subsequent proceedings.

IV. ELEMENT TWO: PETITIONER POSSESSES INFORMATION CONCERNING THE CRIMINAL ACTIVITY

The Petitioner is the direct victim and the sole civilian percipient witness to every aspect of the qualifying criminal activity. He possesses:

> Firsthand knowledge of the entire encounter, from initial contact through booking at Santa Rita Jail; the dashcam transcript (Exhibit A), which he obtained, authenticated, and produced—constituting the objective evidence that proves the fabrications in the CHP report; the CHP arrest report (Exhibit B), the Detention Certificate (Exhibit C), and the DMV records (Exhibit G), all of which he has analyzed, preserved, and made available to CHP and other investigating entities; and a detailed sworn declaration (Exhibit D) setting forth the full scope of physical and mental harms sustained.

This element is satisfied beyond any reasonable question. The Petitioner is not merely a passive victim—he is the individual who identified, preserved, and produced the key exculpatory evidence (the dashcam transcript) that proves the criminal activity occurred.

V. ELEMENT THREE: PETITIONER HAS BEEN, IS BEING, AND IS LIKELY TO BE HELPFUL

The helpfulness requirement under 8 U.S.C. § 1101(a)(15)(U)(i)(III) and California Penal Code § 679.10(b) is broadly construed. The Petitioner's cooperation is extensive and ongoing:

> **(1) Filing of the CHP Citizen Complaint.** Petitioner filed the citizen complaint that initiated CHP File No. 390.18437.17620—the very investigation Sergeant Dutra has been assigned to conduct. Without this complaint, there would be no investigation.
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> **(2) POST Complaint.** Petitioner filed a separate complaint with the Commission on Peace Officer Standards and Training, which was forwarded to CHP on March 23, 2026, under Case No. PUBLIC-26-000371. This expanded the investigative record available to CHP.
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> **(3) Preservation and Production of the Dashcam Transcript.** Petitioner obtained, transcribed, and produced the complete CHP dashcam recording (Exhibit A)—the single most important piece of evidence proving the criminal activity. This evidence is in CHP's own custody but would not have been meaningfully analyzed or compared against the officers' report without the Petitioner's initiative.
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> **(4) DMV Administrative Proceedings.** Petitioner participated in the DMV APS hearing on January 24, 2025, preserving his rights under penalty of perjury and creating an additional official record of the incident.
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> **(5) Government Tort Claim.** Petitioner filed a sworn government tort claim with the California Department of General Services within the statutory period, initiating formal investigation of the officers' conduct at the state level.
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> **(6) No Refusal to Cooperate.** At no point has the Petitioner refused or failed to provide information or assistance reasonably requested by any investigating entity. Under California Penal Code § 679.10(h), this creates a rebuttable presumption that the Petitioner is helpful.

VI. SUBSTANTIAL PHYSICAL AND MENTAL ABUSE

While the "substantial physical or mental abuse" determination is ultimately made by USCIS—not the certifying official—the evidentiary record before CHP confirms the severity of the harm, which contextualizes the certification:

> **Physical harm:** Forcible handcuffing and an involuntary blood draw (two vials extracted from the right arm by phlebotomist Aziza Ghaleb at the CHP Dublin Area Office). (Exhibit B, p. 5.)
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> **Extended detention:** Following the false arrest, a parole hold was instituted based on the fabricated report, extending the Petitioner's detention from the initial arrest through booking at Santa Rita Jail, where he was held from Friday until the following Wednesday without arraignment. (Exhibit D, ¶ 5.) During this period, the Petitioner was confined with individuals accused of violent crimes including homicide, creating conditions he feared for his personal safety. (Exhibit D, ¶ 5.)
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> **Complete loss of livelihood:** The false arrest report triggered DMV administrative suspension proceedings. Following the APS hearing on January 24, 2025, the Petitioner's Class A commercial driving license was suspended for one full year (February 20, 2025 through February 19, 2026), disqualifying him from commercial driving. (Exhibit G.) The pay stubs (Exhibit E) document that the Petitioner was earning between approximately $900 and $2,800 per week as a commercial truck driver in the months before the incident. The Petitioner estimates total lost wages during the suspension period at approximately $112,000. (Exhibit D, ¶ 4.)
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> **Severe emotional distress:** The Petitioner's sworn declaration details ongoing anxiety, panic attacks, flashbacks, a deteriorated sense of self-worth, humiliation in his spiritual and social community, and strained family relationships. (Exhibit D, ¶¶ 6–10.)

VII. THE CRITICAL DASHCAM-TO-REPORT CONTRADICTIONS: A SIDE-BY-SIDE ANALYSIS

Because the fabrication evidence is the foundation of the obstruction of justice and perjury elements, the following side-by-side comparison is provided for the certifying official's convenience:

1. Odor of Alcohol

> **CHP Report (Exhibit B, p. 4):** "I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle." Also: "the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person."
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> **Dashcam (Exhibit A):** Neither officer verbalizes detecting any odor of alcohol at any point during the encounter. The only odor discussed is urine from the cup. (00:58:51–00:59:04.) Melano's later comment about sanitizing gloves references "piss everywhere"—not alcohol. (01:23:26.)

2. Speech

CHP Report (Exhibit B, p. 2): Characterizes Petitioner's speech as "Slurred."

Dashcam (Exhibit A): Audio captures the Petitioner speaking coherently throughout. He spells his last name on request ("N-E-W-W-A-N-F-O-R-B-I" at 00:59:57), discusses alternator mechanics with officers (01:44:21–01:45:37), and engages in extended articulate conversation about his CDL training and truck driving practices (01:01:21–01:01:56).

3. Demeanor / Orientation

CHP Report (Exhibit B, p. 4): Claims Petitioner "seemed very confused and disoriented."

Dashcam (Exhibit A): Petitioner correctly identifies his location as Livermore (01:00:41); reads distant highway signs ("Isabella Avenue, Portola Avenue" at 01:00:44); knows his origin (Oakland), destination (Stockton), and route; and provides a cogent explanation of commercial driver fatigue protocols (01:01:21).

4. Beverage Present

CHP Report (Exhibit B, p. 2): Checks "BEVERAGE PRESENT: YES."

Dashcam (Exhibit A): The only liquid found was urine in a cup. An empty Mike's Hard Lemonade can was found (01:00:09), but the Petitioner denied consuming it and no officer observed it to contain any liquid.

VIII. THE LEGAL STANDARD FOR CERTIFICATION

California Penal Code § 679.10 imposes a mandatory obligation on CHP as a state law enforcement certifying entity. The statute requires certification when three elements are met: (1) the petitioner was a victim of a qualifying crime; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful, is being helpful, or is likely to be helpful in the detection, investigation, or prosecution of the criminal activity. All three are satisfied here, as demonstrated above.

The following legal points are emphasized for the certifying official's consideration:

No prosecution or conviction is required. Section 679.10(k) provides that "[a] current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." The fact that CHP declined to file charges against the Petitioner—and indeed conceded the arrest was unjustified—is irrelevant to the certification determination. What matters is whether the officers' conduct constituted qualifying criminal activity against the Petitioner.

Helpfulness is presumed. Section 679.10(h) creates "a rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" if the victim has not refused or failed to provide information and assistance reasonably requested. The Petitioner has never refused any request for cooperation.

Certification must be processed within 30 days. Section 679.10(j) requires the certifying entity to process this request within 30 days of receipt.

Denial must be in writing with specific reasons. If CHP determines it cannot certify, § 679.10(g) requires a "written explanation of the specific reasons for the denial." A generalized or conclusory refusal does not satisfy this statutory obligation.

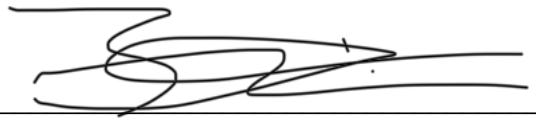
Signing the certification does not grant a visa. The Form I-918 Supplement B is a factual certification, not an immigration decision. USCIS independently adjudicates the petition, conducts a full background check, and makes all eligibility determinations. The certifying official's signature carries no immigration consequences standing alone and does not prejudice any ongoing investigation. As the DHS U Visa Law Enforcement Resource Guide makes clear, the certification is simply a statement by the certifying official that, based on the facts known to the agency, the petitioner is or was a victim of qualifying criminal activity and has been helpful.

IX. CONCLUSION

The evidentiary record before CHP is overwhelming and largely self-proving. The dashcam recording—CHP's own evidence—establishes that Officers Meza-Gonzalez and Melano subjected the Petitioner to false imprisonment, felonious assault, and obstruction of justice on November 1, 2024. CHP's own Detention Certificate confirms the arrest lacked justification. The Petitioner has cooperated extensively with every available investigative channel and has never refused any request for assistance.

Every statutory element for U visa certification is satisfied. The Petitioner respectfully requests that Sergeant Dutra, as the designated certifying official, review the enclosed Form I-918 Supplement B and the supporting evidence, and execute the certification in accordance with California Penal Code § 679.10 and 8 U.S.C. § 1101(a)(15)(U).

Respectfully submitted,



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